

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
MARCH 18, 2026
8:30 a.m.

3. COLLEEN SIDEY V. BRYAN YERIAN

22FL0437

This matter is before the court for a status conference regarding potential settlement on reserved issues. The court notes there currently exists a “Status Only Judgment,” issued October 23, 2024. Appearances are required to update the court on the status of negotiations regarding the reserved issues.

**TENTATIVE RULING #3: APPEARANCES ARE REQUIRED AT 8:30 A.M.,
WEDNESDAY, MARCH 18, 2026, IN DEPARTMENT 12 TO UPDATE THE COURT ON THE
STATUS OF SETTLEMENT NEGOTIATIONS REGARDING THE RESERVED ISSUES.**

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
MARCH 18, 2026
8:30 a.m.

4. JED HIRSCHFELD V. KELLI MCALISTER

24FL1065

This matter is before the court on two separate Requests for Order (RFO), both filed by the Petitioner.

The first RFO,¹ filed January 15, 2026, is a request to (1) modify “visitation,”² (2) require both parties to respond to any messages on the “Talking Parents” application within 48 hours regarding health, education, exchanges, or vacations, and (3) confirm that Petitioner has permission to take the parties’ children to Legoland. The filing of Petitioner’s RFO prompted the court to refer the parties to a CCRC session set for January 29, 2026. (El Dorado Super. Ct., Local Ct. R. 8.10.01.)

The second RFO, filed February 13, 2026, is a request to modify custody of the parties’ child, HH (age 6). The RFO also includes a request for Temporary Emergency Orders pending the hearing, specifically, that the Petitioner be granted sole temporary legal custody, as HH has an immediate dental issue. On February 13, 2026, the court denied the Petitioner’s request for Temporary Emergency Orders.

RFO Filed January 15, 2026

Proof of service filed January 20, 2026, shows that the RFO, CCRC referral, and Notice of Tentative Ruling were all served upon the Respondent via mail that same day.

Respondent filed no timely Responsive Declaration.

The court is in receipt of a CCRC report dated January 29, 2026. The CCRC counsellor states that, on the morning of the CCRC appointment, she was notified by a court clerk that the Respondent was reportedly ill and unable to attend that day. Due to the Respondent’s non-appearance, the CCRC counsellor was unable to make any recommendations to the court. A copy of the CCRC report was mailed to both parties on February 02, 2026, according to the Clerk’s Certificate of Mailing.

The court treats the RFO as unopposed. Having reviewed the Petitioner’s declaration in support of the RFO, the court finds that the requested changes are in the best interests of HH, and therefore, the court grants the relief requested in the RFO.

¹ The caption of the RFO has a check mark next to “Child Custody,” indicating that the RFO includes a request regarding child custody. However, the body of the RFO states the Petitioner requests no change to legal or physical custody.

² Petitioner’s specific requests regarding visitation are included in Attachment 7 to the RFO, and pertain to: (1) right of first refusal before arranging third-party child care; (2) right of first refusal where the other parent is unable to personally supervise the children for more than 24 hours; (3) ensuring the children arrive to school on time; (4) response time on the “Talking Parents” application; and (5) Facetime and phone calls between the parties and their children.